

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,

Petitioner

VS.

JUAN CARLOS MENENDEZ FUNES,

Respondent

) Case Number: FDV-23-816763

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear at 9am on 4/28/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Yesenia Moz Castro (Mother) and Respondent Juan Carlos Menendez (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5).
- 2) On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother. The Court ordered the parties to continue following the Court's 6/21/2023 order for parenting time for Father every Friday from 6:30pm to 7:30pm, supervised by Mother's mother (the maternal grandmother). The Court ordered that the visits shall occur at the maternal grandmother's home or another location the grandmother approves of. The Court ordered that Mother shall not be present during the visits and that the maternal grandmother may cancel the visit if she is not available or if she believes Father is not sober.

- 1 3) On 2/11/2026, Father filed a request seeking parenting time every Saturday from 1pm to 5pm. He
2 states he has not seen Valerie since “sometime in 2024” and that he has reached out to Mother to
3 reestablish contact but has not been allowed to see Valerie. Recently, he states that Mother asked
4 him whether he would consent to her husband adopting Valerie. Father attaches screenshots of
5 text messages that show him asking to see Valerie, and Mother asking him if he could consent to
6 having her husband adopt Valerie.
- 7 4) Mother filed a response in which she sets forth the history of domestic violence, including the
8 incidents that led to the issuance of the DVRO. She states that Father saw Valerie only 3 or 4
9 times, spent only 10 to 30 minutes with her each time, and has not seen her since 2/24/2024.
10 Since then, Father has never called Valerie on her birthday, Christmas, or other special events,
11 and only reaches out to Mother to ask for money or other favors. Mother asks the Court not to
12 order any parenting time for Father “due to a documented history of domestic violence, threats,
13 instability, and lack of parental involvement, which I believe would place [Valerie] at risk of
14 emotional and psychological harm.” Mother states she assumed the parental role for Father’s
15 daughter Victoria because he was unable to care for her and that Father has multiple DVROs
16 against him and has previously lost custody of a son. She states she has been Valerie’s primary
17 provider throughout her life and has a stable and secure home.
- 18 5) The parties attended mediation and did not reach an agreement. Mother asks for there to be no
19 visits at this time. Father asks for a weekly one-hour visit.

20 **B. Findings and Orders**

- 21 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
22 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
23 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
24 child is the United States.
- 25 2) **The parties are ordered to appear at 9am on 4/28/2026 in Department 404 in person or via**
26 **Zoom video.**
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